

Responsibility of Representative for Payment of Fees

The purpose of this form is to confirm under what capacity you are managing the finances of our service user, and the expectations and implications of doing so.

Please use black ink.

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area

1. Service Users Details

Name of Service User

Title: Surname: Forename(s):

2. Representative Details

Name of Representative

Title: Surname: Forename(s):

Address:
(Inc. postcode)

Address Line 1
Address Line 1
TOWN/COUNTY
POSTCODE

Tel: Email:

2. Capacity under which you are acting for the service user

Please see attached explanations and tick the appropriate box(es). You must also provide us with the documentation listed on the attached for each of the below to evidence your role in this capacity:

- Appointee with the Department of Work & Pensions ☐
- Deputy for Property and Affairs ☐
- Lasting Power of Attorney (property and affairs) ☐
- Enduring Power of Attorney ☐
- Other (please specify)

Date that you began to act in the above capacity?

DD / MM / YY

Please turnover to sign the declaration.

3. Representative Declaration

I confirm that the information I have given is true, and that if it is found that I have been dishonest in the information I have given I could be prosecuted. If I am prosecuted I know that information I have given may have to be passed to the Police.

I acknowledge that I am in receipt of, and manage monies on behalf of the service user. In consideration of me continuing to receive and manage these monies, I agree to pay the costs assessed by Nottinghamshire County Council for the service user's care or support from the monies that I receive and manage.

I understand, agree and accept that if I do not pay the assessed costs from the monies that I receive and manage on behalf of the service user, then I will be personally liable for the payment of the assessed costs, and this will be the case even if I have paid part of the costs and/or the service user has died.

I understand that by signing this declaration I am accepting full responsibility for payment of the assessed costs of the service user and that legal proceedings may be taken against me to recover any money owed to the Council in respect of assessed costs including a claim for interest and court costs.

Signature of Representative:

Print Name:

Date:

DD / MM / YY

Please return the completed form to:

Nottinghamshire County Council
Adult Care Financial Services
County Hall
West Bridgford
Nottingham
NG2 7QP

Appointee with the Department of Work & Pensions

The Department of Work & Pensions (DWP) can grant 'appointeeship' to someone on behalf of a service user who is unable to manage their own affairs because they lack capacity or are severely disabled. 'Appointeeship' gives someone the right to deal with the benefits that are due to be paid to that person. It is recommended that the appointee set up a new separate bank account 'as the appointee for the service user' to manage future benefits, although the DWP will sometimes make payment of the service users benefits directly into the appointee's own bank account.

An appointee's responsibilities are as follows;

- Making and maintaining any benefit claims including signing the claim form.
- Advising the benefit office about any changes which affect how much the claimant gets.
- Spending the benefit (which is paid directly to you) in the claimant's best interests - **Nottinghamshire County Council considers payment of care fees to be in this category.**
- Telling the benefit office if you stop being the appointee e.g. the service user can now manage their own affairs.

(Information taken from www.gov.uk/become-appointee-for-someone-claiming-benefits)

Evidence you **MUST** supply to show that you are the appointee for a service user;

- A letter from the DWP confirming your status as appointee.
- A copy of a recent bank statement showing where the service user's benefits are being paid to and how much is in payment.

Deputy for Property and Affairs

A deputy is someone appointed by the Court of Protection to make decisions for someone who is unable to do so on their own. A deputy is responsible for making decisions for someone until either the person they're looking after dies or is able to make decisions on their own again. The Mental Capacity Act is used to work out if someone can make their own decisions and how they can be helped.

A deputy is usually a close friend or relative of the person who needs help making decisions but can also be a professional, like an accountant or a solicitor. The Court of Protection can appoint a 'panel deputy' (someone with specialist knowledge of mental capacity law) to look after someone's financial affairs if no one else can do this.

The Court of Protection will tell the deputy about their powers and responsibilities and what decisions they can and can't make. However, deputies **MUST**:

- Only make decisions in the other person's best interests – **Nottinghamshire County Council considers payment of care fees and preventing the service user from falling into debt to be in this category.**
- Only make decisions the court says they can make.
- Apply a high standard of care when making decisions.

A court order will be granted if you are named deputy and you will need to make regular reports to the Office of the Public Guardian. You should keep a record of decisions you make and documentation in support of these decisions, for example:

- Receipts and bank statements for making investments and evidence of income and expenditure.
- Letters and reports from health agencies or social services if changing the care a person is getting or deciding that they should reside elsewhere.

(information taken from www.gov.uk/become-deputy/overview)

Deputy for Property and Affairs continued

Evidence you **MUST** supply to show that you are the deputy for a service user;

- A copy of the deputyship court order.
- A copy of a recent bank statement showing where the service user's benefits are being paid to and how much is in payment.

Lasting Power of Attorney for Property and Affairs

A lasting power of attorney is a legal document that lets a service user ('donor') appoint people ('attorneys') to make decision on their behalf. This can be made by a service user who is over 18 and has the mental capacity to do so and can then be used if they become unable to make their own decisions.

A lasting power of attorney for property and affairs allows someone to make decisions about money and property for the service user, e.g.

- Paying bills – **including Nottinghamshire County Council care fees.**
- Collecting benefits – to enable the payment of the above mentioned fees to be made.
- Selling your home.

This type of lasting power of attorney can be used as soon it is registered with the Office of the Public Guardian with the permission of the service user.

Evidence you **MUST** supply to show that you hold Lasting Power of Attorney for a service user:

- A copy of the Lasting Power of Attorney document or form.
- Confirmation from the Office Public Guardian that the Lasting Power of Attorney has been registered.
- A copy of a recent bank statement showing where the service user's benefits are being paid to and how much is in payment.

(Information taken from <https://www.gov.uk/power-of-attorney/overview>)

Enduring Power of Attorney

Enduring powers of attorney were replaced by lasting powers of attorneys (discussed above) in England and Wales. However, they can still be used if they were made and signed before October 2007. You must register the enduring power of attorney if the donor is losing, or has lost the ability to make their own decisions.

(Information taken from <https://www.gov.uk/power-of-attorney/if-you-have-an-enduring-power-of-attorney>)

The responsibilities and evidence required in this situation is the same as above.

Other

Someone may be assisting a service user in an unofficial capacity not recognised by the above, for example third party mandate, access to bank accounts or access to a service user's bank account and cards to make payments and withdraw money.

Evidence you **MUST** supply to show that you may be acting in an alternative capacity:

- Confirmation from the service user's bank that you have agreed third party access.
- A copy of a recent bank statement showing where the service user's benefits are being paid to and how much is in payment.